

HOUSE No. 5411

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, May 4, 2026.

The committee on Health Care Financing to whom were referred the Bill to increase access to the flu vaccine for older adults (House, No.760), and the Bill boosting flu prevention for seniors (House, No. 764), reports recommending that the accompanying bill (House, No. 760) ought to pass with an amendment substituting therefor a bill with the same title (House, No. 5411) [Cost: Greater than \$100,000.00].

For the committee,

JOHN J. LAWN, JR..

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to increase access to the flu vaccine for older adults.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 51D of chapter 111 of the General Laws, as appearing in the 2024
2 Official Edition, is hereby amended by adding at the end thereof the following new paragraph:-

3 Each year from October 1 through February 1 of the following year and in accordance
4 with the latest recommendations of the Advisory Committee on Immunization Practices of the
5 Centers for Disease Control and Prevention or of the state department of public health, each
6 hospital shall offer, prior to discharge, immunizations against influenza virus to all inpatients
7 sixty-five years of age and older, unless contraindicated, and contingent upon the availability of
8 the vaccine.